

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0000437

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: TRISTA CARR

vs.

DEFENDANT: CALIFORNIA
DEPARTMENT OF CORRECTIONS AND
REHABILITATION

NATURE OF PROCEEDINGS: 1) MOTION – CONTINUE TRIAL
2) MOTION – OTHER: CONTINUE HEARING ON MOTION FOR SUMMARY JUDGMENT

RULING

Appearances required.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for August, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/04/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0002018

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PETITIONER: CHRISTIAN E. OLIVA
FLORES, ET AL

vs.

DEFENDANT: NATIONAL RESPONSE
TEAM LLC, ET AL

NATURE OF PROCEEDINGS: HEARING – OTHER: HEARING AFTER JURY VERDICT

RULING

After considering all the evidence presented at trial and the arguments of counsel, the Court provides the following additional award:

1. Waiting-Time Penalties

The Court finds that Defendant National Response Team, LLC failed to pay all wages due to Plaintiffs at discharge and that Plaintiffs are entitled to waiting-time penalties under Labor Code section 203. Accordingly, the Court awards waiting-time penalties against Defendant National Response Team, LLC as follows:

Christian E. Oliva Flores: **\$5,280**

Luis David Perla Monterroza: **\$5,280**

(*Mamika v. Barca* (1998) 68 Cal.App.4th 487, 493.)

2. Wage-Statement Penalties

The Court finds that Defendant National Response Team, LLC issued inaccurate wage statements to Plaintiffs and that Plaintiffs are entitled to wage-statement penalties under Labor Code section 226. The Court awards wage-statement penalties against Defendant National Response Team, LLC as follows:

Christian E. Oliva Flores: **\$4,000.00**